

**MASTER NON-DISCLOSURE AGREEMENT**

This Master Non-Disclosure Agreement (“Agreement”) is made and entered into as of [Date] (“Effective Date”) by and between:

**DocereHealthCare Pvt. Ltd.**, a company incorporated under the laws of India, having its registered office at ‘Arham’ A-211, Amitnagar Society, Near Amitnagar Circle, Karelibaug, VIP Road, Vadodara - 390022 (hereinafter referred to as the “Disclosing Party”);

and

**[Client/Partner Company Name]**, a company incorporated under the laws of India, having its registered office at [Address] (hereinafter referred to as the “Receiving Party”).

Collectively referred to as the “Parties” and individually as a “Party.”

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**1. Definition of Confidential Information**

For purposes of this Agreement, “Confidential Information” means any data or information, oral or written, disclosed by either Party to the other, including but not limited to business plans, strategies, financial information, trade secrets, technology, products, services, patient data, healthcare professional information, Hospital Staff, suppliers, and any other proprietary information marked or identified as confidential or which reasonably should be understood to be confidential under the circumstances of disclosure.

Confidential Information specifically includes, but is not limited to, any information related to the Parties’ current or future collaboration models, including the SmartVolume Model, TotalCare System, Extended Care Model, or any other business discussions or proposals.

Confidential Information does not include information that:

- a) is or becomes publicly available without breach of this Agreement;
- b) is lawfully received from a third party without restriction;
- c) was known to the Receiving Party prior to disclosure;
- d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party’s Confidential Information.

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**2. Purpose of Disclosure**

The Parties agree to exchange Confidential Information solely for the purpose of evaluating and negotiating potential or ongoing business relationships related to any collaboration models or services between them, including but not limited to the SmartVolume Model, TotalCare System, and Extended Care Model.

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**3. Obligations of Receiving Party**

- a) The Receiving Party shall use the Confidential Information solely for the purposes described above.
- b) The Receiving Party shall maintain the Confidential Information in strict confidence, applying at

*Dr. Priyanshi Shah*

DocereHealthCare Pvt. Ltd.

Partnering Hospital/ Medical Practitioner



least the same degree of care as it uses to protect its own confidential information, and in any event no less than reasonable care.

c) Confidential Information shall not be disclosed to any third party except to employees, contractors, or affiliates who have a legitimate need to know and are bound by confidentiality obligations no less restrictive than this Agreement.

d) The Receiving Party shall notify the Disclosing Party immediately upon any unauthorized use or disclosure of Confidential Information.

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#### **4. Term**

This Agreement shall commence on the Effective Date and continue for a period of **One (1) Year**, unless terminated earlier by either Party in writing. The confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

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#### **5. Return or Destruction of Confidential Information**

Upon termination or upon request of the Disclosing Party, the Receiving Party shall promptly return or destroy all materials containing Confidential Information and certify such return or destruction in writing.

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#### **6. No License**

Nothing in this Agreement grants any license or right to use any intellectual property of either Party except as expressly set forth herein.

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#### **7. Legal Compliance**

The Receiving Party may disclose Confidential Information if required by law, regulation, or court order, provided that it promptly notifies the Disclosing Party to allow for protective action.

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#### **8. Remedies**

The Receiving Party acknowledges that unauthorized disclosure or use of Confidential Information may cause irreparable harm to the Disclosing Party. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief and any other remedies available at law or in equity.

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#### **9. Governing Law and Jurisdiction**

This Agreement shall be governed by and construed in accordance with the laws of India. The Parties agree to submit to the exclusive jurisdiction of the courts located in Vadodara, Gujarat, India.

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## 10. Amendment

Any modification, amendment, or waiver of any provision of this Agreement shall be effective only if made in writing and signed by authorized representatives of both Parties. No failure or delay by either Party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof.

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## 11. Entire Agreement

This Agreement constitutes the entire understanding between the Parties with respect to the subject matter hereof and supersedes all prior discussions, negotiations, agreements, or understandings, whether written or oral. No other agreements, promises, representations, or understandings shall be binding unless made in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**DOCEREHEALTHCARE**

For DocereHealthCare Pvt. Ltd.

Name: Dr. Priyanshi Shah

Title: Founder and Cardiology Pharmacist

Date:

For **[Partnering Company]**

Name:

Title:

Date:

*Dr. Priyanshi Shah*

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